THOMAS CHIDZOMBA
Versus
THE STATE

IN THE HIGH COURT OF ZIMBABWE
MUZOFA &BACHI MZAWAZI JJ
CHINHOYI, 26 January / 17 February 2026

Criminal Appeal

F. Murisi, for the appellant
R. Nikisi, for the respondent

BACHI MZAWAZI J: This is an appeal against both the conviction and sentence of the Magistrate court sitting at Chinhoyi. The appellant had been charged and convicted for unlawful occupation of Gazetted land as defined in section 3 (1) of the Gazetted Land (Consequential Provisions) Act [Chapter 20:28]. He was sentenced in accordance with s4 of the same enactment to a fine of $300 and ordered in terms of s5, to vacate the land by 10 September 2025. He was tried with twelve of his employees after seven from the nineteen initially charged had absconded. The charges emanated from an incident of the 18th of June 2025, where those nineteen workers from different disciplines in the construction industry had been accosted and apprehended on the contentious farm, known as subdivision,1, of R/E *Dundrennan, Manhenga Farm, Lions' Den,* Chinhoyi.

The lawful occupier of subdivision,1, of R/E *Dundrennan, Manhenga Farm, Lions' Den,* Chinhoyi, is *Daniel Brink Bosman*, a holder of a 99-year lease who was offered the gazetted land in 2004. In May 2025, *Bosman* had initially caused the arrest of the appellant as an unlawful intruder and an illegal occupier in terms of the Gazetted Land (Consequential Provisions) Act, above. The appellant was procedurally acquitted after the State had withdrawn charges after he had pleaded. An analysis of the proceedings shows that the withdrawal was clearly misplaced. It was centred on a wrongly issued and retracted power of attorney by one *Kindness Paradza*.

To elaborate*, Paradza* had no legal authority to cede occupation rights to the appellant 22 years later in April 2025. His 2003 offer letter had been revoked in the same year it had been issued. He therefore, ceded non-existing rights, thereby illegitimising the appellant's

occupation from the onset. This makes the acquittal of the 16th May of 2025, on the basis of the 12th Of May 2025, revocation of the defunct document by *Paradza,* not only irregular but dubious. Two wrongs or irregularly issued documents could not certainly translate to a right authorising even the withdrawal of the charges of the 16th of May 2025 to begin with. So clearly, with all those glaring irregularities, the acquittal though through the operation of the law was wrongly premised. A withdrawal of charges by the State after plea in criminal litigation entitles the accused person to acquittal verdict.

In this case, the acquittal was not after a trial or based on the merits. It was a technical or procedural acquittal. There was no determination on the legality of the appellant's stay. He still remained in unlawful occupation. Clearly, and admittedly appellant had no recognised legal right to be in occupation pre and post the May 2025 litigation.

Lawful authority is defined as occupation by means of, an offer letter, a permit and land settlement lease[1]. Appellant had then and to date none of these documents. In light of the foregoing, it is crystal clear that the May 2025 verdict did not zero in or purge the statutory breach or violations of s3 (1) of the Gazetted Land (Consequential Provisions) Act.

It thus, follows from this back ground, that the lawsuit of June 2025, in distinction culminated in a full trial resulting a decision made on merits over the lawfulness of the appellant's stay. It is the ruling that, imposes a penalty of a fine and eviction in terms of the governing statute. Given this scenario, it is not surprising that the appellant and his nineteen employees were then arrested and tried under the same provisions of the same Act in June 2025. It seemed nothing materially had changed from the time of the last court proceedings in May 2025.

The appellant's challenge on appeal is basically, that, what existed and led to the May litigation had not changed when he was then rearraigned and convicted on the same charge and evidence in June. He argued that there was no evidence placed on record rebutting or proving that the dwellings, constructions, employees, vehicles and livestock that were subject to the June trial were not the same then existence in May. Therefore, his defence of autrefois acquit ought to have succeeded.

[1] The definition/interpretation section in [Chapter 20:28] Commercial Farmers Union and 9 Others v The Minister of Lands and Rural Settlement and 6 Ors SC31/10.

Mr *Murisi* for the appellant, further contends that the State failed to prove beyond a reasonable doubt appellant's physical occupation of the farm after May 2025. In their view, the primary court was thus wrong in arriving at a conclusion primarily on circumstantial evidence that did not exclusively point to the guilty of the appellant.[2]

Of note, it is incorrect and very misleading for, Mr *Murisi* to further argue, that the appellant's continued occupation after the 16 May 2025 litigation, was sanctioned by a competent court sitting as a bail court. To the contrary, the only bail order, restricting access and ordering stoppage of work was after the June 2025, arrests. This is after the workers had already been arrested on site. It is the order that temporarily authorised the four security guards to remain safeguarding the appellant's property and attending to welfare of the domestic animals pending completion of trial.

That bail order was an interim order, whose lifespan ceased upon completion of trial and the convictions now under appeal. It has no bearing in the June proceedings nor did it legally sanction the offences committed before it was granted. The facts and evidence reveal that when the appellant and his entourage were arrested for the 18th of June 2025, criminal offence, of violating s3 of gazetted land laws, they applied for bail. We agree with *Mr Nikisi* for the State that, bail was given with conditions that the appellant and his crew where not supposed to visit the prohibited site.

The trial court, concluded that in terms of the relevant law, occupation of land is not restricted to physical presence or control. The continued presence of the appellant's equipment, employees, structures and livestock, in his view constituted use, and holding as stipulated by the Act sufficient for a conviction and attendant penalties under the Act. He dismissed the defence of autrefois acquit as of no bearing on the case hinged on the occupation after the 16th of May 2025, he made a finding that the appellant was in occupation in June 2025 without lawful authority. It is this decision of the trial court that is subject to appeal.

The only issue for determination is whether or not the court erred by convicting and sentencing appellant as it did.? First and fore most, all the analysed evidence points to the fact that the appellant was not in lawful occupation of the farm in question. He was never in and still is in unlawful occupation of the farm. The property, incomplete construction, vehicles,

[2] Muyanga v S HH79/18which was correctly cited by the defence speaks to the essentials of circumstantial evidence.

livestock and employees on the farm prior to and post May 2025 are undeniably his. So, it is neither here nor there that his illegal structures and the unauthorised presence of his property in whatever form and his employees existed prior to or after May 2025.

Through his admissions in court, he said after May 2025 he never set foot on the farm but all his above belongings and workers remained. His version is not probable, because in May 2025 there was no extant court order barring him from going to the farm or evicting him. The appellant admitted not honouring a term of the out of court deal that influenced his acquittal by rejecting the existence of an eviction letter penned by the Ministry of lands through their officials as result of that settlement.

The trial court did therefore not err in drawing a reasonable inference that the appellant was in occupation of the farm when tried in June 2025. It can easily be discerned that since the acquittal was not a court order addressing his unlawful occupation, business continued as unusual. Hence, the court could be faulted in believing the witnesses that they even saw the appellant sinking a borehole during the period in contention. The witnesses may have been mistaken on dates. This cannot be held against them since as humans, not androids, automatons or machines it is not uncommon get dates mixed up.

Though the first two witnesses ended up admitting they did not actually witness the appellant's physical presence on site after 16 May 2025, in our view does not absolve the appellant from unlawful occupation. However, the evidence of the arresting officer, *Ishamel Banga* remained unshaken in that, though mixed up on the specific dates in June, he actually saw, the nineteen employees, divided into different groups according to their skills carrying out various construction work on the cite on the day of the arrest.

It is obvious that the appellant's co accused's evidence had been tailored and choreographed to exonerate the appellant. Hence its rejection by the court. They were his employees. The projects they were caught red handed completing are for the appellant. It defies logic why firstly, they all would coincidentally, without a coordinator, would congregate at the farm at the same time on the same date in June 2025, only for the purpose of assessing work done in May for the purpose of payment. Further, it defies logic that some of them said they were accosted cleaning building tools. If there was mortar, it could have dried given the alleged period when works stopped. Their conflicting evidence gave credence to Ishmael Banga's evidence. The witness saw wet tools being used.

Coming to the crux of the appellant's submissions, the relevant section which criminalises unsanctioned occupation of land gazetted land, s3 stipulates that no person may hold, use or occupy , gazetted land, without lawful authority. [3] (My emphasis). Mr *Murisi* says only physical personal presence of the appellant is tantamount to occupation in terms of the impugned section. We are not persuaded by that argument. The appellant's property has continuously unlawfully been on the farm in question that is to *hold*. His cattle are there grazing and drinking water and being herded, that is *using* the gazetted land. His employees are there looking after his property well after the expiration of the bail order, even before the June trial that is 'use' of gazetted land. This means that he would pay the employees and supply all the livestock needs. He was in control, of the happenings on this prohibited land. His physical presence may not have been seen or eye witnessed but there was sufficient evidence of his constructive occupation.

In the absence of the definition and or interpretation of the word occupation in both the governing and the Interpretation Acts, I would like to equate occupation to possession for the purpose of the circumstances of this case. Possession can either be actual or constructive. Actual possession can be determined by the physical aspect that is, *corpus* or the animus *possidend*i, that's the mental state. *See, S v Mpa 2014(1) ZLR572 (H)*

In *S v Mpa* above, it was highlighted that a person can have actual or constructive possession, sole or joint possession. Constructive possession was explained as when a person is not in direct physical control but has the power and the intention to take control over the thing.

In other jurisdictions, the Canadian Supreme Court in *R v Pham* (3005)2005 Con. LTR 44671 C.C.C. (3d 326(Ont. C.A.), a case of persuasive authority, it was stated that:

> "In order to establish constructive possession, it must be shown that the accused had knowledge of the object that discloses some degree of control of the item, beyond mere quiescent knowledge. Constructive knowledge is a question of fact and may occur where there is no evidence of actual possession, but there is sufficient circumstantial evidence to show that the accused may still be attributed to''. See, *Her majesty the Queen and Jason Walter Callan* 2014SKB 173Q.B.A. Can L.

All the above cited cases spoke to possession of movables items like drugs, firearms amongst others. In the context of this case the possession is of an immovable akin to spoliation cases. In equal force, the dictum of these cases applies to the possession we have interpreted

[3]Section 3 ibid and Commercial Farmers Union and 9 Others case supra.

as occupation for the purpose of gazetted land in this case. So apart form the establishment of the *using* and *holding* aspect as observed herein, the trial court was correct in concluding that the appellant also had control through the continued presence of his properties, workers and livestock all answerable to him.

Disposition

The appellant's defence of autrefois acquit bordering on an acquittal not on the merits nor after trial was not demonstrably satisfied[4]. The unlawfulness of his occupation was not determined. He remained in breach of statutory law which criminalised unlawful occupation. The subject matter that gave rise to the June offence was distinct from that of May 2025. In May 2025 the appellant's workers were caught red handed on site. The mere fact that under cross-examination by Mr *Murisi,* in the subordinate court, the appellant denied receiving an ejectment letter from the Ministry of lands an offspring the May 2025 deal, giving rise to the procedural acquittal, means in his mind he had not been evicted. This translated to the continuous presence in the form of developments, workers and livestock. It shows constructive control and constructive occupation or possession. These were proved facts all pointing to the guilty of the appellant.[5]

The appellant was in subjective control of all that was taking place on the farm even if no one may have seen him there in person. He was in constructive occupation. He had no business to be on the farm in contravention of the law. The trial court correctly applied the provisions of the law, convicted him and penalised him as statutorily dictated. The trial court did not err. The whole appeal has no merit

Accordingly, the appeal is dismissed with costs.

Muzofa J Agrees

Murisi & Associates, legal practitioners for the appellant
The National Prosecuting Authority for the respondent

[4] *Chinyeze v The Law Society of Zimbabwe (8 of 2022) [2020] ZWSC 8 (11 June 2020)* Martin L Friedland, *Double Jeopardy* (Oxford: Claredon Press, 1969), p 117 Mawere v Comm General of Police No, and Anor HB98/18

[5] S v *Chabalala* 2003(1) SACR 134 (SCA) @ p139-140, The State did manage to prove its case beyond a reasonable doubt as dictated by S18 of the Criminal Law Code [Chapter 9:23] See Machakaire v S SC30-92